



DEPARTMENT OF THE NAVY  
SOUTHEAST REGIONAL MAINTENANCE CENTER  
CONTRACTS DEPARTMENT  
P.O. BOX 280057  
NAVAL STATION MAYPORT  
JACKSONVILLE, FL 32228-0057

J&A Number: N40027\_25\_003  
CODE: 4239/192  
DO: N4002725F0084

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

JUSTIFICATION

1. Contracting Activity.

The agency is the Naval Sea Systems Command (NAVSEA). The contracting activity is the Southeast Regional Maintenance Center (SERMC).

2. Description of the action being approved.

A Request for Contract Change (RCC) 1G, Work Item 233-12-002 to firm fixed-price delivery order N40027-25-F-0084 issued under IDIQ/MAC N00024-21-D-4458 to Fincantieri Marine Systems North America (FMSNA), to accomplish repairs to USS ST. LOUIS (LCS 19) under the SSP SERM-043-25 WOO availability. The increased scope of work is to replace [REDACTED]

3. Description of supplies/services.

The Government has a need to complete emergent repair of the [REDACTED] on USS ST. LOUIS (LCS 19). The ship has operational tasking upon completion of this availability. RCC 1G provides additional repairs to [REDACTED] including access cuts and premium hours to support the current period of performance. It would be in the best interest of the Government to incorporate work in current availability. [REDACTED] The current value of the delivery order is [REDACTED]. The IGE is [REDACTED]. FMSNA has submitted price totaling [REDACTED].

4. Exception to the fair opportunity process and supporting rationale.

The authority which permits an exception to fair opportunity is FAR 16.505(b)(2)(i)(A) - The agency's need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

USS ST. LOUIS is scheduled to deploy in [REDACTED] but recently experienced a casualty of its [REDACTED]

[REDACTED] The emergent repairs on the [REDACTED] are both complex and time-consuming; however, the vessel's schedule requires that the repairs be completed within a very constrained timeline. During the Open and Inspect process conducted under an OEM IDIQ contract, the Project Team determined that this out-of-scope work on the WOO is necessary to complete emergent repairs.

The following supports the exception to fair opportunity:

- a. [REDACTED]  
and scheduled to be accomplished during the WOO before the completion of the Open and Inspect process accomplished under the OEM IDIQ contract. [REDACTED]  
[REDACTED] were identified as necessary subsequent to the award of the WOO contract.

**5. Determination that the anticipated cost to the Government will be fair and reasonable.**

The contracting officer will determine that the price is fair and reasonable using the Independent Government Estimate, Technical Advisory Reports, and historical cost data from similar repair. Additionally, the base IDIQ contract for the anticipated delivery order was competitively awarded with established ceiling labor rates and material/subcontractor burden rates. The Contracting Officer will use those rates to negotiate a fair and reasonable price.

**6. Other facts supporting the justification for the exception to the fair opportunity process.**

Considering the complexity of the repair and the short timeline for the start of the repair, any delay associated with providing fair opportunity for the USS ST. LOUIS [REDACTED] repair will prevent the ship from deploying as scheduled. A delayed deployment could result in unfulfilled Global Force Management (GFM) commitments.

**7. Actions, if any, the agency will take to remove or overcome any barriers that led to restricted consideration before any subsequent acquisition for supplies and services is made.**

As the root cause for the exception to fair opportunity was an unforeseen casualty identified through continued Open and Inspect processes, there is no specific barrier to remove. Analysis of the cause of the casualty may determine a course of action to prevent similar casualties from occurring in other ships, but it is premature to assume a class-wide issue exists.

**CERTIFICATIONS AND APPROVAL**

**COMBINED TECHNICAL/REQUIREMENTS CERTIFICATION  
(FAR 16.505(b) (2) (ii) (B) (9)) :**

I certify that the facts and representations under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

[REDACTED] [REDACTED]  
[REDACTED], Waterfront Operations Manager Date

**LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90)) :**

I have determined this justification is legally sufficient.

[REDACTED] [REDACTED]  
[REDACTED], SERMC Counsel Date

**COMBINED CONTRACTING OFFICER CERTIFICATION AND APPROVAL  
(FAR 16.505(b) (2) (ii) (C)) :**

I certify that this justification is accurate and complete to the best of my knowledge and belief. Upon the basis of the above justification, I hereby approve, as Contracting Officer, the award of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of FAR 16.505(b) (2) (i) (A), as the agency's need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays. PAYNE.MARK.H.1090969753

Digitally signed by PAYNE.MARK.H.1090969753  
Date: 2025.04.15 12:42:37 -04'00'

Mark Payne, Chief of the Contracting Office Date